

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KEIRA PAYTON,

Petitioner

VS.

MIGUEL AMADOR,

Respondent

) Case Number: FDV-21-816075

) Hearing Date: May 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in Department 404. At the 5/28/2026 hearing, the Court intends to set the matter for a long cause hearing and issue interim orders as necessary pending the long cause hearing.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Kiera Payton (Mother) and Miguel Amador (Father) have one minor child together, Levi (DOB 3/12/2021, age 5). The parties have had joint legal and physical custody of Levi since 2023, with a 2-2-3 parenting time schedule. (See Stipulation and Order filed 12/21/2023.) Mother lives in Sacramento and Father lives in Daly City; the parties have been conducting their custody exchanges on Mondays, Wednesdays, and Fridays in Pinole.
- 2) On 2/20/2026, Mother filed a request for a change in custody and parenting time due to the fact that Levi's age (entering Kindergarten) and the distance between the parties (Father in Daly City and Mother in Sacramento) will make it impossible for the parties to continue following the

1 current parenting time schedule. She requests that Levi be permitted to enroll in Kindergarten in
2 the Sacramento area where she resides, and that Father have parenting time on the second, fourth,
3 and fifth weekends of each month, with a week-on, week-off schedule during the summer
4 months. She states she has been the parent who has provided Levi with consistency and stability
5 over the years. She notes that Father lived in her home in Sacramento for approximately 5 months
6 in 2024 but subsequently lived in 5 different places in the Sacramento area for the next 6 months,
7 then moved back to his parents' house in Daly City in August 2025 without prior notice to her.
8 She states that Father has not been employed since 2022 and it is unclear how long he plans to
9 stay in Daly City. She states that in contrast, she has been consistently employed by the same
10 employer in Sacramento. She states that Father frequently relies on his parents and sister to watch
11 Levi during his custodial time and that he has not enrolled Levi in any activities. She states that
12 on one occasion, Father kept Levi for 3 days and refused to tell her where they were. She states
13 that Father has a history of being late for drop offs and refusing to take Levi to medical and dental
14 appointments during his parenting time.

15 3) On 5/7/2026, Father filed a declaration in which he states that Mother has refused to exchange
16 Levi to him "over 10 times" and that he has called law enforcement to enforce the prior order. He
17 states that Mother unilaterally enrolled him in school without notice to him and refuses to allow
18 Father to claim Levi as a dependent on his tax returns despite prior agreement of the parties. He
19 states that Mother has moved twice without providing notice to him and has refused to meet and
20 confer about modifications to the current order. Father states he is a caring and loving parent and
21 that Levi plays, learns and explores during his time with him. He states that Levi has extended
22 family in Daly City and is very close to them. He states he consistently appears for parenting time
23 exchanges and takes custody of Levi, including during an emergency in which Mother asked him
24 to get Levi in the middle of the night. Father submits a transcript of the parties' Talking Parents
25 communications regarding Levi's school. Father requests that the parties continue sharing legal
26 custody and that Levi be permitted to enroll in an elementary school in Daly City.

27 4) Mother filed a reply declaration on 5/19/2026. She requests a 3/4, 4/3 rotating schedule until
28 school starts this fall and that the Court order the parties to enroll Levi in John Adams Academy,
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1 a Kindergarten-through 12th grade charter school in Roseville. She responds to Father's
2 allegations.

3 **B. Findings and Order**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.
- 8 2) **The parties are ordered to appear in person or by Zoom video at 9am on 5/28/2026 in**
9 **Department 404. At the 5/28/2026 hearing, the Court intends to set the matter for a long**
10 **cause hearing and issue interim orders as necessary pending the long cause hearing.**
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